

Court No. - 3

Case :- WRIT - C No. - 16887 of 2022

Petitioner :- Veerendra Singh

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Anil Kumar

Counsel for Respondent :- C.S.C.,Gaurav Singh

Hon'ble Surya Prakash Kesarwani,J.

Hon'ble Jayant Banerji,J.

Heard Sri Anil Kumar, learned counsel for the petitioner, learned standing counsel for the State-respondents and Sri Gaurav Singh, learned counsel for the respondent No.3.

This writ petition has been filed praying for the following relief:

"(i) Issue a writ order or direction in the nature of certiorari quashing the impugned recovery citation dated 11.01.2022 issued by respondent No.2 (Annexure No.1) and return the recovery to the respondent No.3 during the pendency of this writ petition.

(ii) Issue a order or direction in the nature mandamus commanding stay the effect of operation of the impugned recovery citation dated 11.01.2022 issued by the respondent No.2 and direct to the respondent no.3 to do not recover the amount as per impugned order/recovery certificate and directed the respondent No.3 to do not charge the interest and other expenses from the petitioner."

Sri Gaurav Singh, learned counsel for the respondent No.3/ Power Distribution Corporation, states on instructions that the petitioner may file objection against the impugned demand which shall be decided in accordance with law within a time bound period.

In view of the aforesaid and without expressing any opinion on merits of the case of the petitioner, **this writ petition is disposed off** giving liberty to the petitioner to submit his/ her objection under **Para 6.5 of U.P. Electricity Supply Code, 2005** before the respondent No.3, within four weeks from today along with a certified copy of this order. In the event such an objection is submitted within the stipulated period, it shall be decided by the respondent No.3 in accordance with law within next four weeks, after affording reasonable opportunity of hearing to the petitioner.

For a period of eight weeks or till disposal of the objection of the petitioner, whichever is earlier, no coercive action shall be taken against the petitioner in pursuance of the impugned demand.

Order Date :- 13.7.2022

NLY